

24STCV24662 24STCV24662

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-08-10

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Case Number: 24STCV24662 Hearing Date: August 10, 2026 Dept: 300

CASE NUMBER: 24STCV24662

CASE NAME: Alexis Rogelio Rocha Godina vs. Garfield Beach CVS, LLC, et al.

TYPE OF MOTION: Motion to Bifurcate

FILING PARTY: Defendants Garfield Beach CVS, LLC, Evelyn Moreno, and Victoria Ribera

RESPONDING PARTY: Unopposed

HEARING DATE: August 10, 2026

Instant Motion:

Defendants move the Court, pursuant to Civil Code section 3295(d) and Code of Civil Procedure sections 598 and 1048(b), for an order bifurcating trial into two phases: (1) a liability and compensatory damages phase and (2) a punitive-damages phase, to be held only if warranted. The motion is unopposed.

On March 27, 2026, the Court granted Defendants motion for summary adjudication as to the issue of punitive damages as it relates to Defendant CVS. (See 03/27/2026 Minute Order.) However, the Court finds that punitive damages remain live against individual Defendants Moreno and Ribera.

Tentative Decision:

The Court finds that bifurcation is mandatory under section 3295(d) and, alternatively, warranted under sections 598 and 1048(b).

The motion to bifurcate is GRANTED.